STANDARD OPERATING PROCEDURE			P-3460
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA GREG LONDON SHERIFF	DATE ISSUED 06/01/06	DATE REVISED **03/11/25** / DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*	
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 28-323, 29-439, 29-440, 42-924, 42-928, 42-929 SARPY COUNTY DOMESTIC VIOLENCE LAW ENFORCEMENT PROTOCOL		
SUBJECT DOMESTIC VIOLENCE	CROSS REFERENCE I-6200 EVIDENCE AND PROPERTY; P-4700 ARRESTS /CITATIONS; P-4820 INTERVIEW AND MIRANDA WARNINGS; I-3400 MAJOR CASE INVESTIGATION TEAM		

I. Purpose:

The purpose of this policy is to establish procedures for responding to and investigating domestic violence calls and protection order violations.

II. Policy:

The Sarpy County Sheriff's Office regards domestic violence as a serious violent crime. The Sheriff's Office role regarding domestic violence calls is to protect and assist the victim, to investigate the crime, to arrest the perpetrator when probable cause exists, and to preserve and collect evidence for prosecution. Domestic violence calls are arguably the most serious and dangerous incidents road patrol deputies respond to and investigate.

III. Definitions:

A. DOMESTIC ASSAULT (N.R.S. 28-323): Intentionally or knowingly causing bodily injury to his or her intimate partner, threatening an intimate partner with imminent bodily injury, or threatening an intimate partner in a menacing manner.

B. INTIMATE PARTNER: A spouse; a former spouse; persons who have a child in common whether or not they have been married or lived together at any time; and persons who are or were involved in a dating relationship. These categories may also apply to same-sex relationships. For purposes of this policy, dating relationship means frequent, intimate associations primarily characterized by the expectation of affectional or sexual involvement, but does not include a casual relationship or an ordinary association between persons in a business or social context.

C. PREDOMINATE AGGRESSOR: The person with influence or authority over another. The person that has made an unprovoked assault or used unjustified force.

IV. Procedure:

A. Response and Approach-Deputy Responsibilities:

1. Two deputies shall be assigned to all calls of domestic violence and shall coordinate their response.

2. Generally, deputies shall respond to verbal disturbances normal status and physical disturbances urgent status.

3. Deputies should avoid using sirens and emergency lights near the scene of the call.

4. Deputies should avoid parking directly in front of the residence.

5. Deputies should detain anyone leaving the scene and conduct a brief interview to determine their role in the incident. Deputies should remain alert for suspects leaving the scene. Deputies should ask anyone they encounter leaving the scene if they are armed and watch for “security checks” where armed individuals pat/touch/adjust clothing covering a firearm/weapon, and consider a complete pat search.

6. Deputies should observe the scene prior to making contact. Deputies should look and listen for signs of the disturbance.

B. Initial Contact-Deputy Responsibilities:

1. Deputies should identify themselves and ask permission to enter the building.

2. Deputies should offer or obtain medical treatment for any obviously injured person(s) and document the location where treatment was obtained, in addition to any refusal of treatment.

3. Deputies should inquire about the nature of the dispute.

4. Deputies should identify the participants and separate them, if possible.

5. Deputies should identify all parties at the scene.

C. Refused Entry-Deputy Responsibilities:

1. Deputies should be persistent and explain that a complaint was received, and it must be verified.

2. If entry is refused, Deputies should notify their on-duty supervisor and he or she shall determine if forced entry shall be necessary.

3. **Forced Entry:** If probable cause exists to indicate that a felony is occurring, has just occurred, or that a misdemeanor crime of violence is occurring, deputies may force entry into a building. Circumstances that may provide probable cause are:

a) Cries for help.
b) Weapons displayed.
c) Obvious signs that a struggle occurred or is occurring.
d) Eyewitness accounts that a felony has occurred and the victim and/or suspect are still on location.

D. **Investigation-Deputy Responsibilities:** As part of a domestic violence investigation the victim, suspect and any witnesses to the incident shall be interviewed. If possible, all interviews should be recorded on the in-car audio/video recording system, body worn camera or with a micro-cassette recorder (see P-4820 Interview and Miranda Warnings). Deputies shall also conduct an investigation of the scene itself.

1. **Victim:** Deputies shall protect the victim:

a) The victim should be interviewed out of sight and sound of the suspect.

b) Deputies should be aware of possible internal injuries to the stomach, breast area, portions of the head covered by hair, and the back. Absence of immediately visible injuries does not mean the victim has not been assaulted.

c) If the victim refuses medical assistance, deputies should carefully document visible injuries and document the refusal.

d) Deputies should document the victim's condition and demeanor.

e) Photographs should be taken of all visible injuries.

f) The victim should complete a written statement as soon as possible. If the deputy is unable to obtain a written statement from a victim, the deputy shall note in the report the reason he or she was unable to obtain a statement (e.g. victim refused).

g) Victims may need to temporarily leave their residence, deputies should:

(1) Attempt to locate an immediate family member who is able to house the victim.

(2) Determine if a close friend could house the victim.

(3) Ascertain if the victim has sufficient funds for accommodations at a hotel or motel.

h) Deputies may transport the victim to an emergency shelter with the permission of the on-duty shift supervisor.

i) Deputies shall provide the victim of domestic violence a Sarpy County Victim/Witness Unit "Assistance for Crime Victims and Witnesses" flyer prior to ending contact.

2. Witnesses: Deputies shall interview all witnesses:

a) Demographic information (name, address, phone numbers, etc.) shall be obtained from all witnesses.

b) Deputies shall ensure the safety and privacy of all witnesses. Deputies shall conduct interviews away from the victim and suspect.

c) Witnesses should complete written statements as soon as possible.

3. Children: Children may be witnesses or victims.

a) Deputies should attempt to examine all children present for possible injuries or signs of abuse. Medical attention should be provided, if necessary.

b) Deputies should use sound judgment when deciding what children to interview regarding the domestic violence. The child's verbal skills and maturity should be considered prior to questioning about the incident.

c) Children may often provide information regarding past incidents of domestic violence.

4. Suspect:

a) Suspects shall be provided Miranda warnings if they are not free to leave and deputies have probable cause to believe a crime has been committed (P-4820 Interview and Miranda Warnings).

b) Deputies should obtain a written statement from the suspect if he or she has waived his or her Miranda rights.

c) Deputies should photograph any visible injuries on the suspect.

5. **Neighbors/Reporting party:**

   a) Deputies shall attempt to determine the identity of the original reporting party (Communications may have the information). If the reporting party is not on location, deputies shall attempt to locate and interview the reporting party.

   b) Deputies may also interview neighbors as to what they may have seen or heard regarding past or present incidents.

6. **Crime Scene:** The entire scene of the domestic violence incident should be examined and photographed. Specifically any signs of struggle or damage to property should be documented. Any evidentiary articles substantiating the assault should be taken and logged (I-6200 Evidence and Property).

E. **Arrest-Deputy Responsibilities:**

1. If deputies establish probable cause to believe a domestic violence assault or a felony crime has been committed and the suspect is responsible, the deputies **shall** make a custodial arrest. Arrest decisions shall be based on the legal requirements enumerated in P-4700 Arrests/Citations.

2. The custodial arrest shall be made even if the victim does not wish to pursue the matter.

3. If the responsible party is not present at the scene, proper follow-up shall be conducted to affect the arrest. This follow-up may consist of issuing a law enforcement broadcast, checking possible locations where the suspect might be, or issuing a warrant for his or her arrest. Deputies may also suggest the victim leave the scene in case the suspect returns.

4. **Predominate Aggressor:**

   a) Deputies shall identify a predominate aggressor at the scene of every domestic violence incident where an arrest is made. The information used to determine the predominate aggressor should be noted in the arrest report. Deputies may use the following criteria, among others, to determine the predominate aggressor:

      (1) Prior complaints of domestic violence*
      (2) The relative severity of injuries*
      (3) The likelihood of future injury to each person*
      (4) Whether one of the persons acted with a justified use of force*
      (5) Information from witnesses, including children
      (6) An escalation of violence by one party

(7) Expressions of fear related to the other party

* Included in N.R.S. 29-439

b) Deputies should avoid making multiple arrests in domestic violence cases unless there was more than one incident with more than one predominate aggressor. If more than one person is arrested for domestic assault, an additional incident report must be completed setting forth the grounds for arresting multiple parties.

F. Report and Notification-Deputy Responsibilities:

1. On all domestic violence related calls, whether an arrest is made or not, a Sarpy County Domestic Violence Worksheet shall be completed:

a) The worksheet shall be placed in the deputy work area inbox at the end of shift.

b) Transcription shall fax the worksheet to the County Attorney's Office.

c) Worksheets shall be retained in a permanent file.

2. On all domestic violence related arrests, an arrest report shall be completed. It is important to include detailed contact information for the suspect, victim and all witnesses. Contact information should include home and work addresses and phone numbers, any cellular phone numbers and any alternate phone numbers.

3. All responding deputies, where a domestic violence related arrest is made, shall complete incident reports. Incident reports shall be labeled supplemental to the original arrest report using the same RN number.

4. When an arrest is made for a domestic violence related crime, deputies shall contact the domestic violence advocates on the domestic violence hotline number and provide the requested information prior to returning to service from the call.

a) Victims should be advised that the suspect will be given a no-contact provision as a part of his or her bond, but despite the bond provision, the suspect may return.

b) Victims should be advised that a domestic violence advocate will be contacting them. If the victim does not want contact from an advocate, the advocate should be provided that information.

5. **Follow-up Investigation:** Deputies shall attempt to make contact with the domestic violence victim 48 to 72 hours after the original call. Deputies shall photograph any injuries visible at this time and submit a supplemental report describing now visible injuries and any additional statements of the victim.

G. Non-arrest Incidents-Deputy Responsibilities:

1. Deputies shall inform the parties that there is not sufficient evidence to make an arrest.

2. Deputies may offer transportation to either party with permission from the on-duty shift supervisor. Deputies may consider the Heartland Family Service Crisis Center in Papillion for a victim to stay at for a 24 hour period.

3. Deputies may use any appropriate intervention strategy to calm, settle, or resolve the dispute, such strategies may include mediation, referral to an appropriate agency, or persuading one of the parties to leave the home temporarily.

4. Deputies may contact a domestic violence advocate, but should advise the advocate that no arrest shall be made.

5. Deputies may direct parties to the Sarpy County Victim Witness Unit. The Victim Witness unit is also able to assist with filing protection orders. When informing parties regarding protection orders, it is important that deputies not lead individuals to believe that protection orders are automatically issued by the district court.

H. Weapons at the Scene of Domestic Violence:

1. Incident to an arrest for domestic assault (N.R.S. 28-323) or a felony crime, deputies **shall** seize all weapons that are alleged to have been involved or threatened to be used in the incident.

2. Incident to an arrest for domestic assault (N.R.S. 28-323), deputies **may** seize any firearm and ammunition in plain view or discovered pursuant to a legal search as necessary for the protection of the deputy or any other person.

3. If weapons are discovered at the scene of a non-arrest domestic violence situation, deputies may suggest the weapons be voluntarily impounded.

I. No-Contact Bond Provisions: Suspects arrested for domestic assault (N.R.S. 28-323) shall have a no-contact provision placed on their bond. The suspect may not have contact with the victim. Deputies discovering a violation of a no-contact provision shall complete an incident report and forward a copy to the County

Attorney's Office. The County Attorney's Office may request a bond review for the violation, but deputies may not take enforcement action on a no-contact violation.

J. Strangulation (28-310.01)-Deputy Responsibilities: Though strangulation is not specifically a domestic violence related crime, it is a common occurrence in domestic violence cases. The elements of strangulation include knowingly or intentionally impeding the normal breathing or circulation of the blood of another person.

1. Deputies may use the following criteria, among others, to determine if the crime of strangulation has occurred:

a) The victim lost consciousness.
b) The victim has difficulty speaking or has a raspy voice.
c) The victim complains of light-headedness or of "seeing stars."
d) The victim has ligature or finger marks on the neck or throat.
e) The victim has petechiae (small red spots caused by the bursting of capillaries from pressure) on the neck, face, or the whites of the eyes.
f) The victim or witnesses describe the suspect "choking" the victim.

2. Deputies shall offer medical treatment at any SANE approved medical facility (Methodist Hospital and CHI facilities) for a medical forensic examination and evaluation.

3. Deputies shall complete a Strangulation Form for all potential strangulation cases. Deputies shall include the Strangulation Form with the arrest report.

K. Protection Order Violations-Deputy Responsibilities:

1. Deputies shall investigate all calls regarding violations of protection orders.

2. Deputies shall contact Communications to confirm the existence of any valid Nebraska or foreign protection orders and to confirm that the protection order was served to the respondent.

3. If deputies determine there is probable cause to believe a protection order has been violated, they **shall** make a custodial arrest.

4. The suspect shall be taken to the jail for booking and must see a judge prior to bond being set. The arresting deputy shall complete an affidavit of probable cause.

L. Military Protection Orders: Military protection orders are issued by a command officer of a military division. They restrict the actions of a military member, but are not equivalent to a civil protection order issued by a court. The military protection orders do not meet the enforcement criteria required by State Statute and can not be enforced by any law enforcement agency outside of the military. The military

protection orders ARE entered into NCIC, but are specifically labeled as such. If a person is encountered in violation of a military protection order, the deputy shall:

1. Verify that the protection order is a military protection order and that no other orders exist that would require enforcement action.

2. Notify the Law Enforcement desk and provide the details of the violation. (The violator may be prosecuted under the Uniform Code of Military Justice).

3. If the violator and victim meet the criteria for an intimate relationship, complete a domestic violence worksheet (see F, 1 of this policy).

4. Make sure the violator is charged with any additional criminal charges (disturbing the peace, domestic assault, etc.).

5. If there is no criminal violation, do NOT place the violator under arrest.

M. Law Enforcement Officer as Suspect or Victim-Deputy Responsibilities:
Domestic violence cases involving any law enforcement officer (as the suspect or victim) shall be handled in accordance with this policy. For additional information regarding domestic violence cases involving Sarpy County Sheriff's Office members see G-1210 Member Involved Domestic Violence.

1. Domestic violence cases involving law enforcement officers shall be dispatched and treated, initially, as any call of domestic abuse.

2. After deputies have secured the scene and ensured the safety of the victim, deputies shall notify the on-duty shift supervisor of the involvement of a law enforcement officer.

N. Law Enforcement Officer as Suspect or Victim-Supervisor Responsibilities:

1. The supervisor shall also notify the on-duty watch commander or the ADC on all domestic violence cases involving law enforcement officers as the victim or suspect.